

Court No. - 2

Case :- WRIT - C No. - 58168 of 2009

Petitioner :- M/S. Nitin Ispat Pvt. Ltd.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. & Ors.

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- H.P. Dube, A.N. Singh

Hon'ble R.K. Agrawal, J.

Hon'ble Mrs. Jayashree Tiwari, J.

Heard Sri Mayank Agrawal, learned counsel for the petitioner and Sri H.P. Dube, learned counsel appearing for the respondents.

By this writ petition, the petitioner has prayed for quashing the demand notice dated 31.8.2009 passed by respondent no.2. Learned Counsel for the petitioner submits that security is being asked under Para 4.20 of U.P. Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 23rd June, 2009 in Writ Petition No. 30582 of 2009 (M/s Vehlana Steels & Alloys Pvt. Ltd. and another Vs. Paschimanchal Vidyut Vitran Nigam Ltd. and another).

Learned counsel for the respondents submits that in several matters identical questions are involved.

List this Writ Petition alongwith other similar matters. Learned Standing Counsel shall give a list of cases in which similar issues are related to the year 2009.

In view of interim order as already granted in Writ Petition No. 30582 of 2009 as referred above, it is provided without prejudice to the right and contention of the parties that until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 4.11.2009

AKT

Court No. - 29

Case :- WRIT - C No. - 58168 of 2009

Petitioner :- M/S. Nitin Ispat Pvt. Ltd.

Respondent :- Purvanchal Vidyut Vitran Nigam Ltd. & Ors.

Counsel for Petitioner :- Mayank Agrawal, Dharm Prakash Mishra

Counsel for Respondent :- H.P. Dube, A.N. Singh

Hon'ble Tarun Agarwala, J.

Hon'ble Vivek Chaudhary, J.

The case is passed over on the illness slip of the learned counsel for the petitioner.

Order Date :- 20.3.2017

Israr

(Vivek Chaudhary, J.) (Tarun Agarwala, J.)

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Counsel for Respondent :- H.P. Dube, A.N. Singh

Hon'ble Tarun Agarwala, J.

Hon'ble Ajay Bhanot, J.

List has been revised. No one appears on behalf of the petitioner to press this writ petition.

The writ petition is dismissed for want of prosecution.

Interim order, if any, stands vacated.

Order Date :- 5.12.2017

Pravin

(Ajay Bhanot, J.)

(Tarun Agarwala, J.)